



H-1B Visa

1) How long does it take for an H-1B Petition to get approved?

Ans: Somewhere between 6-8 months – However we can upgrade to premium processing to get the decision within 15 business days.

2) Is there any way to expedite the H-1B processing while the petition is under adjudication?

Ans: Yes. The option is PP where we can get the decision within 15 business days.

3) My H-1B Cap Subject petition was approved under Premium Processing, how soon I can start working on H-1B status?

Ans: You will be able to begin working for your new employer on October 1st of the year that the petition was filed.

4) On an H-1B transfer can an individual join on Receipt Notice?

Ans: Yes, can join based on Receipt Notice.

5) Can an individual travel outside the US while their case is pending with USCIS?

Ans: You must not travel outside of the U.S. while the petition is pending.

6) If I am on an F-1 and my H-1B is pending with USCIS, can I travel? If Yes, will I need to attend a consulate interview to enter on H-1B?

Ans: It is advised not to travel unless there is an emergency. If you do travel, you will need to attend a consulate interview and then enter the US with an approved visa.

7) I have a new approval notice based on my extension. Do I need to attend a consulate interview again if I travel abroad?

Ans: Yes, if your visa copy has expired a new consulate interview will be required. This could also be a drop box.

8) When can an H-1B visa holder initiate Green Card?

Ans: Please refer to GC policy uploaded on ACIS.

9) My STEM OPT visa expires while my H-1B is pending with USCIS, what happens to my status?

Ans: You will automatically fall under CAP-GAP. The cap refers to the limit on the number of individuals who can receive H-1B status every fiscal year. The gap is the period between the end of an individual's F-1 status and the beginning of the individual's H-1B status. If Affine filed your H-1B (change-of-status) petition and it is received by USCIS after your post-completion OPT expires but during your 60day grace period following OPT, you can continue to stay and work in the US until Sept. 30th of that particular year.

10) What is the duration to respond to an RFE?

Ans: Generally, 90 days as stated on the actual RFE however, due to COVID we may get an additional 60 days

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11) I have changed my residential address while I am on an H-1B visa, what action do I need to take?

Ans: Mandatorily complete the AR-11 form and inform HR & Immigrations Team. Immigration to assist and confirm if an LCA Repost/Amendment is required.

12) Can I change my project after my H-1B visa is approved?

Ans: You will need to check with Immigration Team who will decide whether an Amendment is required and will assist accordingly.

13) Can I change my project while my H-1B is pending with USCIS?

Ans: If it is a CAP case we will have to wait for decision before proceeding with an Amendment however, we can file an amendment if an extension is pending with USCIS.

14) Keeping the current pandemic in mind, are there any restrictions for my travel outside the US?

Ans: There are travel restrictions from India to the US. It is advisable to always reach out to the Immigration team prior to making any travel.

15) My H-1B was initially approved with project "X" and we filed an Amend for project "Y". Project "Y" discontinues, and I need to move back to project "X". do I need to file an amend again?

Ans: If your initial petition is valid then you no need to file an amend.

16) How long will it take to get the RN once my petition is filed?

Ans: USCIS will, normally after approximately one to two weeks, send a receipt notice on Form I-797.

17) My Case gone under Admin processing, what are the next steps?

Ans: If you have been asked for certain documents, please send them over email (after review from immigration) post which we will have to wait for a response. There is no timeline for admin processing cases.

18) When will I be eligible to apply for a visa?

Ans: You should have received an "Exceeds Expectations" and above rating in at least 1 of the last 2 appraisal cycles. Those with a "Partially Meets" or below in either of the last 2 appraisal cycle are not eligible and you should have completed at least 1 year in the organization and should be at a minimum role of a Sr. Associate or above.

19) What is liquidated damages?

Ans: Liquidated damages are terms & conditions that become applicable as soon as Affine remits USD5000 for your visa application (Initial/Extension). Please go through the H-1B 2021 Policy on ACIS

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H-4 Visa

1) Can H-4 visa holders work?

Ans: H-4 visa holders cannot legally work. However, H-4 visa holders can apply for an EAD once their spouses have their approved I-140.

2) Can H-4 work without EAD?

Ans: NO

3) Can H-4 apply for green card while on H-4 EAD?

Ans: H-4 visa holders can apply for GC along with their spouse.

F-1 Visa

1) Do F-1 visa holders need to pay taxes on OPT?

Ans: As an F-1 visa holder, you are exempt from FICA (Social Security and Medicare) taxes. This means that no matter whether you are doing OPT, OPT extension or CPT (Curricular Practical Training), you are exempt from paying Social Security and Medicare taxes unless you've been in the United States for more than 5 years.

2) Can an F-1 visa holder travel outside the U.S while on OPT?

Ans: In general, an F-1 student on OPT may travel outside the United States temporarily and be readmitted to resume F-1 status and employment for the remainder of the period authorized on his or her EAD card.

3) How long can an F-1 student remain unemployed?

Ans: OPT – 90 days and STEM OPT -150 days

4) My OPT / STEM OPT is Expiring, what are the next steps?

Ans: You can apply for the H-1B CAP under master's cap (who have a U.S. master's degree)

5) Can F-1 visa holder apply for green card on OPT?

Ans: Yes, we can surely start the GC process per policy. However, if your OPT/Stem OPT expires and you do not have an H-1B visa, you will have to leave the country, but your GC process can continue.

6) Can F-1 visa holder travel while the OPT application is pending?

Ans: One needs to check with their DSO prior to making any travel plans.

7) What happens when I change my residential address when I am on F-1 status?

Ans: You will need to complete the online AR-11 form within 10 days of any residential address change and also inform your DSO.

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8) How often I need to submit the I983 form?

Ans: Usually once in 6 months or as and when a project/any materialistic change takes place.

9) If I change my project while on OPT, do I need to inform anyone?

Ans: You need to inform DHS and your Immigration Team about the change

L-1 Visa

1) Is there a difference between an L-1A visa and an L-1B visa?

Ans: Yes. Company executives or managers qualify for L-1A visas. Folks with Specialized knowledge typically qualify for an L-1B visa.

2) Can the spouse of an L-1 visa work in the US?

Ans: After entering the US they will have to apply for an Employment Authorization Document (EAD), once approved they will be able to work in the U.S.

3) Can an employer re-locate L-1 employees to different destinations in the U.S.?

Ans: Yes, a company may move an L-1 employee to different sites, so long as the employee remains under the sponsoring company's management and control.

4) How long does it take to acquire an L-1 visa?

Ans: Between 3 to 6 months is the usual processing time. However, with Premium Processing, the petition processing time is reduced to 15 working days.

5) What are the minimum requirements for me to apply for an L-1 Application?

Ans: You should have worked physically outside the US (for entity abroad) for at least one year in the last three years, either as a manager/executive/specialized knowledge worker.

L1A visa - management level people will usually need to show that they have managed a number of staff outside the US.

L1B visa - specialized knowledge workers should have high levels of specialized knowledge in a particular area.

6) Can an individual travel to the U.S. on B-1 visa while waiting for decision on the L-1 petition?

Ans: Generally, this action is not recommended. The individual puts an L1 visa request at risk of visa fraud.

7) Can an L-1 Visa holder switch between companies?

Ans: No, you cannot transfer your L-1 visa to a different company.

8) Can an L-1 visa holder apply for a Green Card?

Ans: Yes. Please review the GC policy uploaded on ACIS

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9) I am in L-1A which is valid for another 6 months and my GC is pending. What are the options to continue to stay in the US?

Ans: Immigration team works on your L-1 extension and simultaneously looks at H-1B options to ensure continuous stay in the US.

10) I have been with the India entity for almost 10 months. Can I file for an L-1 Visa before I complete the 12 months employment? I'm sure by the time I receive an approval I will have completed 12 months...

Ans: Unfortunately, you must meet the L-1 visa requirements at the time of filing and not at the time the petition is approved. We can surely prepare your petition and file once you become eligible.

11) Is there a minimum rate that I must get paid in L-1 status? Like an H-1B and the prevailing wage?

Ans: NO

12) What Is meaning of Specialised Knowledge?

Ans: Specialized Knowledge means special knowledge on any product/service/techniques etc. The individual must possess high level expertise in the organization's processes.

13) How important a client letter for my L-1 petition?

Ans: Client letter is beneficial but not mandatory.

GC (I-485)

1) What is GC process?

Ans: The green card process is a complex and lengthy process. A green card is a Permanent Resident card that allows you to stay and work permanently in the United States.

There are 3 steps –

- 1 – PERM
- 2 – I-140
- 3 – I-485

2) Should I maintain my non - immigrant status after filing I 485?

Ans: Yes, the non-immigration status is backup in case I-485 is denied.

3) How long does it take for the I 485 to get approved?

Ans: 8 to 14 months

4) What is the next step after filing I 485?

Ans: We wait for your EAD/AP to get approved. Once this is approved you can seamlessly continue employment, travel in and out of the country while waiting for your final green card

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5) What happens if my I-485 get denied?

Ans: Your non-immigrant visa will work as a backup, in the interim we will look at reapplying at GC.

6) How do I know my I-485 is approved?

Ans: You can check the status online with "Receipt Number"

7) Can I travel while I-485 is pending?

Ans: If you have an approved EAD/AP you can then travel to and from the US.

8) What happens to EAD if I-485 is denied?

Ans: If the I-485 is denied, EAD/AP automatically nullifies. The individual falls back on his/her non-immigrant visa.

9) When should I-485 be filed?

Ans: We can file an I-485 application when the applicant's priority date becomes current.

10) Can I file EAD & AP Simultaneously with I-485?

Ans: Yes, we can file both the applications simultaneously as part of AOS(I-485) application package.

11) What if I want to go back to my home country when my I-485 is pending? Can I adjust my status at my home country after filing I-485?

Ans: Yes, if you decide to leave US and return back to your country then you will need to take further steps in order to have your case processed abroad. Specifically, you must file form I-824 with the USCIS to request that the consulate be notified of the petition approval.

12) What if my spouse and children are still in my home country? will their visas be approved?

Ans: Yes, they may have to attend consulate interview and then enter with an approved visa.

13) Do I get unlimited extensions on my L after I-140 approval (is it similar to H-1B)?

Ans: No

14) What is a PERM application?

Ans: PERM is level one of a GC where, we establish to USCIS through a labour market test that there are no eligible candidates available/suited to this position. This forms a base to file your GC.

15) After I get PERM approval, how long it will take to get the GC?

Ans: 6 months to several years

16) How important are EVL's for the GC application?

Ans: EVL's play a very important role. It is necessary to confirm at the start of your application if you cannot source such EVL's.

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